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No. 11 - Jeremy Frank v. Ford Motor Company

Plaintiff Jeremy Frank's Motion to Compel Defendant's Person Most Qualified Deposition

Plaintiff Jeremy Frank moves to compel Defendant Ford Motor Company to produce its person most qualified ("PMQ") to testify about 10 topics with 10 accompanying document requests. The Court posted a tentative ruling and heard argument from the parties at the hearing. The Court adopts the following as its final decision on the motion.

"An oral deposition shall be scheduled for a date at least 10 days after service of the deposition notice." (Code Civ. Proc., § 2025.270(a).) "The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (Code Civ. Proc., § 2025.280(a).) One may move to compel the deposition of a party who fails to appear at a deposition or proceed with it "without having served a valid objection under Section 2025.410." (Code Civ. Proc., § 2025.450(a).)

Here, Plaintiff served the operative notice of deposition on Defendant on December 4, 2025, for a scheduled deposition to occur on December 17, 2025. (Pascal Decl., ¶ 3, Ex. 1.) Defendant did not object to the deposition notice and failed to appear at the deposition. (Id., ¶ 4.) Plaintiff attempted to meet and confer with Defendant to resolve this discovery dispute from February to July 2026; however, Defendant has still failed to proceed with producing a PMQ witness. (Id., ¶¶ 6, 8.)

Defendant raises three arguments as to why it need not produce a PMQ witness for the deposition: (1) the Court's November 14, 2025 order addressing Defendant's prior notice of deposition already decided that several requests, which are "essentially identical" to the requests at issue here, were overbroad and burdensome (Opp., at p. 9); (2) Defendant already produced a PMQ witness for matter nos. 1 and 2; and (3) Plaintiff already had ample opportunity to seek the information in matter/request no. 3 or request documents in written discovery. The Court will address each argument in turn.

Defendant's first argument has some merit, but the scope can be narrowed to address the overbreadth. Matter/request nos. 4 and 8 substantially mirror the content of Plaintiff's prior requests that the Court found to be overbroad. For example, matter no. 8 seeks testimony regarding "E-mails, memorandum, electronically stored information, or other correspondence regarding Defendant's concerns with the automatic ten-speed 10R80 transmission or automatic ten-speed 10R80 transmission-related components prior to its introduction." (Pascal Decl., Ex. 1, Matter No. 8.) But, the issues regarding the 10R80 transmission are directly relevant to Defendant's pending motion for summary adjudication. Plaintiff agreed to limit the overbreadth the period two years before the June 25, 2022 purchase of the subject vehicle until the date of purchase. The revision, which the Court adopts, addresses any issue regarding overbreadth.

Plaintiff properly narrowed request nos. 5-7, and 9-10 from the overbroad requests at issue in the prior PMQ notice. For example, matter no. 14 in the prior deposition notice asked for "Any and all information regarding the failure rates of the 10R80 transmissions or 10R80 transmission-related components in the continental U.S." The Court determined that this request was overbroad because it was not narrowly tailored to vehicles in California or Plaintiff's vehicle's specific make and model. (See 11/14/25 Minute Order, at p. 4.) Now, Plaintiff requests testimony regarding "The actual failure rate of the automatic ten-speed 10R80 transmission or automatic ten-speed 10R80 transmission-related components in vehicles of the same year, make, and model as the Subject Vehicle in California from 2020 to present." (Pascal Decl., Ex. 1, Matter No. 6.) Plaintiff narrowed the request further at the hearing to the date of purchase rather than the "present." This is narrowly tailored and seeks discoverable information.

Defendant's second argument – that it already produced a PMQ witness to testify to matter nos. 1 and 2 – is without merit. Defendant cites no caselaw holding that Plaintiff cannot compel a PMQ to testify to matters that were not addressed in prior PMQ depositions even though they were included in the notice. In addition, matter/request nos. 1 and 2 seek discoverable information. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010.) At the hearing, Plaintiff confirmed that this is only a request for documents, not additional testimony. The Court adopts this narrowing.

Defendant's third argument is also without merit. Defendant contends that it need not produce a PMQ to address matter/request no. 3 because "Plaintiff could have included a request for testimony regarding advertising and promotional materials relating to the 10R80 transmission in his Fourth or Fifth Amended Notice of Deposition, in response to each of which Ford produced a PMQ witness, but he did not. Further, as to Request No. 3, Plaintiff included substantially the same Request in his Requests for Production, Set One, to Ford, and should not be permitted to get a second bite at the apple by re-serving the same Request for Production in a different set of discovery." (Opp., at p. 14.)

The Court notes that Defendant provides no legal authority supporting its argument that failure to include certain categories of testimony in prior deposition notices waives that party's ability to obtain that testimony in the future. Further, Defendant cites no legal authority holding it is improper to re-serve requests for certain documents in a deposition notice that was previously included in a request for production of documents. Rather, caselaw confirms that this is proper. (See *Carter v. Superior Court* (1990) 218 Cal.App.3d 994, 997.)

Disposition

Plaintiff Jeremy Frank's motion to compel deposition of Defendant's person most qualified is granted in part as to matter/request nos. 1-10, as narrowed and modified.